

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
FRANCIS ALIFONSO,

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and POLICE OFFICER JOSEPH VITALE,
TAX REGISTRY #953539 OF THE 52ND PRECINCT

Defendants,
-----X

Plaintiff resides at:

3521 DeKalb Avenue, Apt B44
Bronx, New York 10467

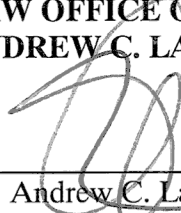
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
August 22, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER JOSEPH VITALE, TAX REGISTRY #953539
OF THE 52ND PRECINCT
3016 Webster Avenue,
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
FRANCIS ALIFONSO,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER JOSEPH VITALE,
TAX REGISTRY #953539 OF THE 52ND PRECINCT,
Defendants,

-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining of the Defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, POLICE OFFICER JOSEPH VITALE, TAX REGISTRY #953539 OF THE 52ND PRECINCT, was and still is employed with the New York City Police Department.
5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That the CITY OF NEW YORK held an examination pursuant to Municipal Law 50H on August 2, 2019.
7. That at all time herein mentioned, POLICE OFFICER JOSEPH VITALE, TAX REGISTRY #953539 OF THE 52ND PRECINCT, was acting within the scope and course of his employment with the New York Police Department, and under color of State Law.
8. That at all times herein mentioned, POLICE OFFICER JOSEPH VITALE, TAX REGISTRY #953539 OF THE 52ND PRECINCT was acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).
9. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

10. On or about December 29, 2018, at approximately 1:00 a.m., Plaintiff was lawfully at the area known as Southern Boulevard and East Fordham Road, in the County of Bronx, State of New York.
11. Plaintiff was at a full stop within his motor vehicle at the aforementioned location's red traffic light.
12. At said time and place plaintiff was stopped by the defendants and falsely accused of operating his motor vehicle in excess and driving while intoxicated while even the defendants video recordings completely contradicted all the allegations of the defendants as made against the plaintiff.
13. Defendants' then arrested Mr. Alifonso and transported him to the 52nd precinct.
14. Plaintiff was taken to Central Booking.

15. Plaintiff then was presented before a judge at approximately 6 p.m., the next day, over 17 hours after the arrest.

16. Plaintiff was then released on his own recognizance.

17. Plaintiff was required to appear at court an additional 3-4 times before all charges were dismissed on April 29, 2019.

18. The individual Defendant, POLICE OFFICER JOSEPH VITALE, TAX REGISTRY #953539 OF THE 52ND PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including the excessive use of force; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which Plaintiff was aware and did not consent; (d) freedom from the lodging of false charges against them by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHT UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST
AND IMPRISONMENT

19. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

20. That on or about December 29, 2018, at approximately 1:00 a.m., THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees, including but not limited to POLICE OFFICER JOSEPH VITALE, TAX REGISTRY #953539

OF THE 52ND PRECINCT, wrongfully and falsely arrested, imprisoned and detained Plaintiff without any right or justifiable grounds therefore.

21. That on or about December 29, 2018, at approximately 1:00 a.m., Defendant POLICE OFFICER JOSEPH VITALE, TAX REGISTRY #953539 OF THE 52ND PRECINCT, jointly and severally in his capacity as a police officer, wrongfully stopped, handcuffed, and seized the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to stop, handcuff, seize or touch Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

22. That on or about December 29, 2018, Defendant Vitale, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested Plaintiff, restrained him and his liberty and then took him into custody to the 52nd Precinct.

23. Plaintiff was thereafter held at the 52nd Precinct, for several hours until he was taken to central booking.

24. That the aforesaid arrest, detention and imprisonment continued at the 52nd Precinct in Bronx, New York and elsewhere.

25. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and employees, including but not limited to the Defendant police officer, without a warrant and without any reasonable cause or belief that Plaintiff was in fact guilty of any crime.

26. That the CITY, its agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

27. As a result of the aforesaid actions, including the arrest and imprisonment of Plaintiff without probable cause, Defendant Vitale deprived Plaintiff of the rights, privileges and

immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

28. As a result of the aforementioned actions, Defendant Vitale deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

29. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

30. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

31. That by reason of the false arrest, imprisonment and detention of Plaintiff, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

32. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State law.

SECOND CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE MALICIOUS
PROSECUTION OF PLAINTIFF

33. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

34. Upon information and belief, on or about December 29, 2018 and from that time until the dismissal of charges, which was favorable termination for the accused, Defendants deliberately

and maliciously prosecuted Plaintiff, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of violations of the criminal laws of the State of New York.

35. The commencement of these criminal proceedings was malicious and began with malice and without probable cause, so that the proceedings could succeed by the Defendants.

36. As a result of the aforementioned actions, including the initiation of the criminal prosecution of Plaintiff without probable cause, Defendants deprived Plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

37. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.

38. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

39. The aforementioned conduct by Defendants was motivated and instigated by other than lawful reasons and without probable cause.

40. The aforementioned acts of Defendants were intentional, willful and malicious and performed with reckless disregard for and deliberate indifference to Plaintiff's rights.

41. Plaintiff has suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

42. The aforementioned constitutional violations are all actionable under and pursuant to 42

U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State law.

THIRD CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983 and RESPONDEAT SUPERIOR

43. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

44. All of the acts and omissions by the individual Defendant, Vitale, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

45. Specifically, Defendants CITY and NYPD, proposed, encouraged, and encouraged their agents, servants, and employees to stop, seize, arrest, and prosecute minorities, like the Plaintiff, under the guise and false accusation of operating a motor vehicle under the influence of alcohol or drugs.

46. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

47. Defendant Vitale arrested, incarcerated and assaulted Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

48. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

49. On or about December 29, 2018, Defendants did stop, seize, search, assault and commit a battery and grab the persons of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner.

50. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants' possessing probable cause to do so.

51. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from illegal search and seizure.
- b. Freedom from false arrest.
- c. Freedom from malicious prosecution.
- d. Freedom from unlawful imprisonment.

52. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

53. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

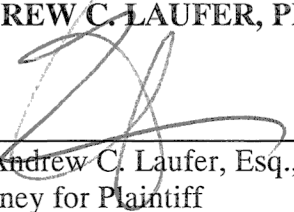
54. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering to his detriment.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the

jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
August 22, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
FRANCIS ALIFONSO,

VERIFICATION

Plaintiff,

-against-

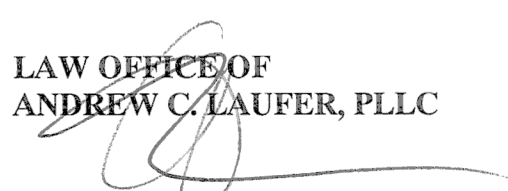
THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER JOSEPH VITALE,
TAX REGISTRY #953539 OF THE 52ND PRECINCT,
Defendants,-----X

ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that the same are true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to these matters I believe them to be true.
2. That the sources of my information and knowledge are records and investigation reports maintained within the file.
3. That the reason this verification is made by the affirmant and not by the plaintiff is that the plaintiff does not reside in the County of New York, which is the county wherein this firm maintains its office.

Dated: New York, New York
August 22, 2019

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index:

Year:

FRANCIS ALIFONSO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, and POLICE OFFICER JOSEPH VITALE,
TAX REGISTRY #953539 OF THE 52nd PRECINCT

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for PlaintiffOffice and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:☐ **NOTICE OF ENTRY**that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on☐ **NOTICE OF SETTLEMENT**that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court aton at M.
Dated,

Yours, etc.

Law Office of Andrew C. Laufer